

| By Uday Mahurkar |

Can a magistrate nail senior police officials without hearing them in a case where national security is involved? That was the question being asked last week as the battle between the Narendra Modi Government and left-oriented activists raged high. With that, the contentious issue of encounters of alleged terrorists and criminals by the state police has entered a new phase. The trigger came from Ahmedabad Magistrate S.P. Tamang, who said in a report that the Gujarat Police had staged the infamous 2004 encounter in which a 19-year-old girl, Ishrat Jahan, and three others, including two alleged Pakistani Lashkar-e-Toiba (LeT) operatives, were killed. The magistrate didn't hear the 21 officers whom he named and said that they had killed the four a day before the encounter.

Within two days of Tamang filing his report, however, Modi got a reprieve with the Gujarat High Court not only staying the report following a plea by the state Government, but also



ISHRAT JAHAN AND THREE OTHERS WERE KILLED IN AN ENCOUNTER IN 2004

The Politics of ENCOUNTER

The Modi Government gets a reprieve as the High Court stays a contentious report on a 2004 police encounter

ENEMIES OF THE STATE

OCTOBER 2002
Samir Khan Pathan: He was arrested on the charge of taking illicit arms training in Pakistan and coming back with plans to kill Modi

JANUARY 2003
Sadiq Jamal Mehtar, a gangster from Bhavnagar: The police said that he was working for the LeT and had plans to kill Modi, L.K. Advani and Pravin Togadia

ordering a probe into the magistrate's conduct by the court registrar. The report filed under Section 176 of the CrPC, wherein a magistrate is empowered to probe custodial deaths, sent shivers down the spine of the Government, which is already battling the Sohrabuddin fake encounter case as well as a section of the judicial fraternity. The report came even as the high court had set up a panel of

officers Pramod Kumar, Mohan Jha and J.K. Bhatt, to probe the case while hearing it last month. The court order was issued on the applications seeking a CBI probe which were filed by Jahan's mother Shamim Kausar and Gopinatha Pillai, father of Javed Shaikh alias Pragnesh Pillai, who was also killed in the encounter.

Tamang completed the inquiry, which had been referred to the chief

judicial magistrate by the deputy collector of Ahmedabad, in just 25 days while the high court had given the three-member police team time till November 30 to file their report. The 243-page report is hand-written and not typed, which shows the unusual urgency shown by him in completing it. So, did Tamang's report aim at pre-empting or influencing the high court probe despite the fact that